Notification Waiver Determination

DCP Capital - Vitaco

Acquisition	DCP Capital Partners II, L.P., proposes to indirectly acquire 100% of the shares in Zeus One Holding Company Pty Limited, which is the holding company for the Vitaco group of companies in Australia (**Vitaco)**, as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	26 October 2026

Parties to the Acquisition	DCP Capital Partners II, L.P. is a fund managed and advised by DCP General Partner II, Ltd and affiliated with DCP Capital, an international private equity firm. DCP Capital manages and advises funds that invest in businesses across a range of sectors, including consumer, healthcare and technology. The target, Vitaco, is a wholesale supplier of health products in Australia. Vitaco primarily supplies vitamins, minerals and supplements under its Nutra-Life brand, health snacks under its Healtheries brand, as well as sports nutrition products under its Musashi and Athena brands.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between DCP Capital (and its connected entities) and Vitaco in the supply of vitamins, minerals and supplements, and sports nutrition b. there are alternative suppliers of vitamins, minerals and supplements, and sports nutrition in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act